Mahendra Kantibhai Patel And Ors vs Haresh Manibhai Patel And Anr on 25 April, 2022

Author: R.I. Chagla

Bench: R.I. Chagla

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Sharayu Khot.

IN THE HIGH COURT OF JUDICATURE AT BOMBAY
ORDINARY ORIGINAL CIVIL JURISDICTION

COURT RECEIVER'S REPORT NO. 106 OF 2022
IN
INTERIM APPLICATION (L) NO. 18997 OF 2021
WITH
INTERIM APPLICATION (L) NO. 18997 OF 2021
WITH
INTERIM APPLICATION (L) NO. 2810 OF 2022
IN
SUIT NO. 318 OF 2021

Mahendra Kantibhai Patel & Ors. ...Applicants/ Plaintiffs

Versus

Haresh Manibhai Patel & Anr. ...Defendants

WITH
INTERIM APPLICATION (L) NO. 16375 OF 2021
IN
SUIT (L) NO. 16365 OF 2021

Haresh Manibhai Patel ...Applicant/ Plaintiff

SHARAYU

Versus

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Jasodaben Kantibhai Patel & Ors. ...Respondents/ Defendants

Mr. Mayur Khandeparkar a/w Mr. Malcolm Siganporia, Mr. Dhiren Durante, Ms. Ruchi Magoo i/by Lexicon Law Partners for the Applicants/Plaintiffs.

Mr. Kashish Mainkar a/w Ms. Krishi Shah and Ms. Jyoti Pardeshi i/by Wadia Ghandy and Co. for the Defendant No.1.
Mr. S.B. Gore, AGP for the State of Maharashtra.
Mrs. Rekha Rane, 2nd Asstt. to C.R. present.

CORAM : R.I. CHAGLA J

DATE : 25 April 2022

ORDER :

1. Learned Counsel appearing for the Defendant No. 1 states that his arguing counsel is not available today.

2. Learned Counsel for Defendant No. 1 tenders Affidavit in Rejoinder in Interim Application (L) No. 2810 of 2022 which has been filed by the Applicant/original Defendant No. 1 under Order VII Rule 11 of the Code of Civil Procedure, 1908. Affidavit in Rejoinder is taken on record.

3. Learned Counsel appearing for the Applicant/original Defendant No. 1 has stated that in compliance with the order dated 19th April 2022 an Affidavit of Undertaking has been furnished to the Court Receiver. However, it is noted that at the end of the undertaking, the words "without prejudice" are mentioned. Hence, the Deponent 2-CRR-106-22-IAL-18997&16375-21.doc of the Affidavit of Undertaking is directed to delete the words "without prejudice" at the foot of the Undertaking or furnish a fresh Affidavit of undertaking.

4. Place the Court Receiver's Report No. 106 of 2022 on 2nd May 2022 at 2.30 p.m. [R.I. CHAGLA J.]